

(5) If any difference arises between a railway servant and such owner or person, the consignee or the endorsee, as the case may be in respect of the description of the goods for which a statement has been delivered under sub-section 91), the railway servant may detain and examine the goods.

(6) Where any goods have been detained under sub-section 95) for examination and upon such examination it is found that the description of the goods is different from that given in the statement delivered under sub-section (1), the cost of such detention and examination shall be borne by such owner or person, the consignee or the endorsee, as the case may be, and the railway administration shall not be liable for any loss, damage or deterioration which may be caused by such detention or examination.

Comments

Section 66, sub-clause (1) provides for delivery of a statement of description of goods by owner, consignee or endorsee to a railway servant.

Sub-clause (2) empowers the railway administration to refuse to accept the goods in the circumstances mentioned therein.

Sub-clause (3) empowers the railway administration to charge the highest rate for any class of goods in cases mentioned therein.

Sub-causes (4), 95) and (6) empower the railway administration to charge the rate not exceeding double the highest rate for any class of goods in case the statement delivered under sub-clause (1) is materially false and examination of goods at the cost of the owner, etc.

67. Carriage of dangerous or offensive goods.- (1) No person shall take with him on a railway, or require a railway administration to carry such dangerous or offensive goods, as may be prescribed, except in accordance with the provisions of this section.

(2) No person shall take with him on a railway the goods referred to in sub-section (1) unless he given a notice in writing of their dangerous or offensive nature to the railway servant authorized in this behalf.

(3) No person shall entrust the goods referred to in sub-section (1) to a railway servant authorized in this behalf for carriage unless the distinctly marks on the outside of the package containing such goods their dangerous or offensive nature and gives a notice in writing of their dangerous or offensive nature to such Railway Servant.

(4) If any railway servant has reason to believe that goods contained in a package are dangerous or offensive and noticed as required Under Sub-section

(2) or sub-section (3) as the case may be, in respect of such goods is not given, he may cause such package to be opened for the purpose of ascertaining its contents.

(5) Notwithstanding anything contained in this section, any railway servant may refuse to accept any dangerous or offensive goods for carriage or stop, in transit, such goods or cause the same to be removed, as the case may be, if he has reason to believe that the provision of the section for such carriage are not complied.

(6) Nothing in this section shall be construed to derogate from the provision of the Indian Explosives Act, 1884 (4 of 1884) or any rule or order made under that Act, and nothing in sub-sections, (4) and (5) shall be construed to apply to any goods entrusted for carriage by order or on behalf of the Government or to any goods which a soldier, Sailor, Airman or any other Officer Armed Forces of the Union or a Police Officer or a member of a territorial Army or of the National Cadet Corps may take with him on a railway in the course of his employment or duty as such.

COMMENT

Section 67 lays down the manner of carriage the dangerous or offensive goods by Railway

68. Carriage of animals suffering from infectious or contagious diseases.-

A railway administration shall not be bound carry any animal suffering from such infectious or contagious diseases as may be prescribed.

COMMENT

Section 68 provides that that railway shall not carry any animal suffering from infectious or contagious disease.

69. Deviation of route.- Where due to any cause beyond the control of a railway administration or due to congestion in the yard or any other operational reasons, goods are carried over a route other than the route by which such goods are booked, the railway administration shall not be deemed to have committed a breach of the contract of carriage by reason only of the deviation of the route.

COMMENT

Section 69 empowers the railway administration to carry goods or to deviate the route under circumstances mentioned therein.